

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 977

Introduced by Storer, 43; DeKay, 40; Strommen, 47.

Read first time January 12, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Nebraska Rules of the Road; to amend
2 sections 60-6,111, 60-6,193, and 60-6,376, Reissue Revised Statutes
3 of Nebraska, and sections 60-676.01 and 60-6,378.02, Revised
4 Statutes Supplement, 2025; to redefine vulnerable road user; to
5 change provisions relating to certain animals being led, herded, or
6 driven on or along highways; to prohibit certain individuals from
7 traveling on certain roadways; to provide for operators of electric
8 personal assistive mobility devices to yield to vulnerable road
9 users; to change provisions relating to vulnerable road users; to
10 harmonize provisions; and to repeal the original sections.
11 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 60-676.01, Revised Statutes Supplement, 2025, is
2 amended to read:

3 60-676.01 Vulnerable road user means:

4 (1) Any pedestrian who is:

5 (a) On a highway and constructing or repairing such highway;

6 (b) Working on utility facilities along a highway;

7 (c) Providing emergency services on or along a highway;

8 (d) In a crosswalk; or

9 (e) On the shoulder;

10 (2) Any individual operating any of the following on or along a
11 highway:

12 (a) Any bicycle;

13 (b) Any electric bicycle;

14 (c) Any motorcycle other than an autocycle;

15 (d) Any moped; or

16 (e) Any vehicle or device similar to any vehicle or device listed in
17 subdivisions (2)(a) through (2)(d) of this section;

18 (3) Any individual who is riding any animal or driving any animal-
19 drawn vehicle on or along a highway;

20 (4) Any individual who is leading, herding, or driving livestock as
21 defined in section 60-6,378.02 on or along a highway;

22 (5) ~~(4)~~ Any individual operating an implement of husbandry,
23 including a farm tractor, that is on or along a highway; and

24 (6) ~~(5)~~ Any individual who is in a crosswalk or on a shoulder and
25 who is on any:

26 (a) Coaster, skate, sled, ski, board, or toy vehicle;

27 (b) Electric personal assistive mobility device; or

28 (c) Wheelchair.

29 **Sec. 2.** Section 60-6,111, Reissue Revised Statutes of Nebraska, is
30 amended to read:

31 60-6,111 (1) Except as provided in section 60-6,378.02, any Any

1 person who rides an animal or drives an animal-drawn vehicle, a farm
2 tractor, or an implement of husbandry upon a roadway shall be granted all
3 of the rights and shall be subject to all of the duties made applicable
4 to the driver of a vehicle by the Nebraska Rules of the Road except those
5 provisions of the rules which by their very nature can have no
6 application.

7 (2) Except as provided in section 60-6,378.02, whenever ~~Whenever~~ the
8 slowness of such animal, animal-drawn vehicle, farm tractor, or implement
9 of husbandry is obstructing the normal flow of traffic, the rider or
10 driver shall drive to the nearest available shoulder of the highway and
11 allow traffic to pass.

12 **Sec. 3.** Section 60-6,193, Reissue Revised Statutes of Nebraska, is
13 amended to read:

14 60-6,193 (1) No person shall drive a motor vehicle at such a slow
15 speed as to impede the normal and reasonable movement of traffic except
16 when reduced speed is necessary for safe operation or in compliance with
17 law.

18 (2) On a freeway no motor vehicle, except emergency vehicles, shall
19 be operated at a speed of less than forty miles per hour or at such a
20 slow speed as to impede or block the normal and reasonable movement of
21 traffic except when reduced speed is necessary for the safe operation of
22 the motor vehicle because of weather, visibility, roadway, or traffic
23 conditions. All vehicles entering or leaving such freeway from an
24 acceleration or deceleration lane shall conform with the minimum speed
25 regulations while they are within the roadway of the freeway. The minimum
26 speed of forty miles per hour may be altered by the Department of
27 Transportation or local authorities on freeways under their respective
28 jurisdictions.

29 (3) Whenever the department or any local authority within its
30 respective jurisdiction determines on the basis of an engineering and
31 traffic investigation that low speeds on any part of a highway

1 consistently impede the normal and reasonable movement of traffic, the
2 department or such local authority may determine and declare a minimum
3 speed limit below which no person shall drive a vehicle except when
4 necessary for safe operation or in compliance with law.

5 (4) Vehicular, animal, and pedestrian traffic prohibited on freeways
6 by the Nebraska Rules of the Road and any individual who is leading,
7 herding, or driving livestock as defined in section 60-6,378.02 on or
8 along a highway shall not travel on any other roadway where minimum speed
9 limits of twenty miles per hour or more are posted.

10 (5) Any minimum speed limit that ~~which~~ is imposed under subsection
11 (2) or (3) of this section shall not be effective until appropriate and
12 adequate signs are erected along the roadway affected by such regulation
13 apprising motorists of such limitation.

14 (6) On any freeway, or other highway providing for two or more lanes
15 of travel in one direction, vehicles shall not intentionally impede the
16 normal flow of traffic by traveling side by side and at the same speed
17 while in adjacent lanes. This subsection shall not be construed to
18 prevent vehicles from traveling side by side in adjacent lanes because of
19 congested traffic conditions.

20 **Sec. 4.** Section 60-6,376, Reissue Revised Statutes of Nebraska, is
21 amended to read:

22 60-6,376 (1) Any person who operates an electric personal assistive
23 mobility device on a highway shall have all of the rights and shall be
24 subject to all of the duties applicable to the operator of a vehicle
25 under the Nebraska Rules of the Road except (a) as provided in special
26 electric personal assistive mobility device regulations adopted pursuant
27 to the Nebraska Rules of the Road, (b) any provisions of the Nebraska
28 Rules of the Road which by their nature can have no application, and (c)
29 as provided in section 60-6,142 with respect to operating an electric
30 personal assistive mobility device on a shoulder of a highway.

31 (2) An electric personal assistive mobility device may be operated

1 on any highway, alley, sidewalk, bike trail, path, or any other area
2 where persons travel, except as provided by the Department of
3 Transportation or local authority. Regulations applicable to an electric
4 personal assistive mobility device shall apply whenever an electric
5 personal assistive mobility device is so operated.

6 (3) An operator of an electric personal assistive mobility device
7 shall yield to vulnerable road users, pedestrian traffic, and any human-
8 powered or animal-powered vehicle at all times. An operator of an
9 electric personal assistive mobility device shall give an audible signal
10 before overtaking and passing any vulnerable road user, pedestrian, or
11 human-powered or animal-powered vehicle. A person violating this
12 subsection shall be fined ten dollars for the first offense. A person
13 violating this subsection shall have his or her electric personal
14 assistive mobility device impounded for up to thirty days for each
15 subsequent offense.

16 **Sec. 5.** Section 60-6,378.02, Revised Statutes Supplement, 2025, is
17 amended to read:

18 60-6,378.02 (1) The operator of a motor vehicle shall proceed with
19 due care and caution as described in subsection (2) of this section when
20 approaching or passing a vulnerable road user.

21 (2) Except as provided in subsection (3) of this section:

22 (a) {2}{a} If there are at least two adjacent lanes of travel in the
23 same direction on the same side of the highway as the vulnerable road
24 user, the driver of the approaching or passing motor vehicle shall
25 proceed with due care and caution and yield the right-of-way when
26 approaching or passing the vulnerable road user by moving into a lane at
27 least one moving lane apart from the vulnerable road user unless directed
28 otherwise by any peace officer, authorized emergency personnel, or road
29 assistance personnel as defined in section 60-6,378; and -

30 (b) If there are not two adjacent lanes of travel in the same
31 direction on the same side of the highway as the vulnerable road user or

1 if moving into another lane is not reasonably possible as defined in
2 section 60-6,378, the driver of the approaching or passing vehicle shall:

3 (i) Reduce his or her speed;

4 (ii) Maintain a safe speed with regard to the location of the
5 vulnerable road user, the weather conditions, the road conditions, and
6 vehicular or pedestrian traffic; and

7 (iii) Proceed with due care and caution or proceed as directed by
8 any peace officer, authorized emergency personnel, or road assistance
9 personnel.

10 (3)(a) For purposes of this subsection, livestock means any horse,
11 mule, donkey, cattle, swine, sheep, or goat.

12 (b) Any person who is operating a motor vehicle upon a highway
13 shall:

14 (i) Use caution when approaching or passing any person who is
15 leading, herding, or driving livestock on or along the highway;

16 (ii) Promptly stop such motor vehicle if a person who is leading,
17 herding, or driving livestock on or along the highway gives a distress
18 signal to the motor vehicle by raising a hand; and

19 (iii) Yield the right of way to livestock being led, herded, or
20 driven on or along the highway.

21 (c) Subdivision (b) of this subsection does not apply if moving the
22 motor vehicle is necessary to avoid an accident.

23 (4) {3} Any person who violates this section is guilty of a:

24 (a) Class IIIA misdemeanor for a second or subsequent violation
25 committed within five years after a conviction for a violation of this
26 section; or

27 (b) Traffic infraction for any other violation.

28 (5) {4} This section does not grant any vulnerable road user the
29 right to be on or along any highway in violation of any other state or
30 local law.

31 **Sec. 6.** Original sections 60-6,111, 60-6,193, and 60-6,376, Reissue

- 1 Revised Statutes of Nebraska, and sections 60-676.01 and 60-6,378.02,
- 2 Revised Statutes Supplement, 2025, are repealed.